

Court No. - 21

Case :- WRIT - C No. - 32271 of 2024

Petitioner :- Ram Bahadur Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pankaj Kumar Ojha, Shiv Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for the petitioner is permitted to serve notice upon respondent no. 2 through its panel counsel within a week and also intimate him about the next date fixed in the case.

2. List as fresh on 16.10.2024.

Order Date :- 25.9.2024

Pkb/

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 32271 of 2024

Petitioner :- Ram Bahadur Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pankaj Kumar Ojha, Shiv Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikas Budhwar, J.

1. The petitioner has challenged the recovery citation dated 23.08.2024 issued by respondent No. 3 for recovery of electricity dues from the petitioner.
2. Shri Baleshwar Chaturvedi, learned counsel for the respondent, Electricity Department, submits that the petitioner has alternative remedy of filing objection under Para 6.5 of the Electricity Supply Code, 2005.
3. Counsel for the petitioner points out that the petitioner has already filed representation on 09.09.2024 and prays that the same be directed to be decided.
4. Accordingly, without expressing any opinion on merits, the petition is **disposed of** with direction to respondent No. 2 to decide the representation dated 09.09.2024 by a speaking order within four weeks from the date of communication of the instant order.
5. The petitioner shall communicate the instant order to respondent No. 2 within two weeks from today and in which event, the recovery in pursuance of the impugned citation will remain in abeyance until the representation is decided.

Order Date :- 16.10.2024

Mukesh Kr.

(Vikas Budhwar, J.) (Manoj Kumar Gupta, J.)